

26STCV06554 26STCV06554

County: los-angeles

Division: Civil Law and Motion

Department: 512

Hearing date: 2026-08-10

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Case Number: 26STCV06554 Hearing Date: August 10, 2026 Dept: 512

HEARING DATE: Mon., August 10, 2026 JUDGE /DEPT: Mkrtchyan/512

CASE NAME: A.A.

Rocha Construction v. Zemet, et al. COMP.

FILED: 02-27-26

CASE NUMBER: 26STCV06554

NOTICE: NO

PROCEEDINGS: DEMURRER

TO THE COMPLAINT

MOVING PARTY: Defendants

Kaitlin Zemet and James R. Zemet

RESP. PARTY: Plaintiff A.A. Rocha Construction

DEMURRER

(CCP §§ 430.10, et seq.)

TENTATIVE RULING:

Defendants Kaitlin Zemet and James R.

Zemet's Demurrer to Plaintiff's Complaint is CONTINUED to September 9, 2026 at

9:00 a.m. in Department 512 of the Stanley Mosk Courthouse.

Case Management Conference is CONTINUED to September 9,
2026 at 9:00 a.m.

At least 16 court days prior to the
next scheduled hearing, Defendants are to file and serve proper notice of
hearing of the Demurrer on Plaintiff.

Moving parties are ordered to give
notice.

SERVICE:

☒ Proof of
Service Timely Filed (CRC, rule 3.1300) OK

☒ Correct Address
(CCP §§ 1013, 1013a) OK

☐ 16/21 Court Days Lapsed (CCP §§ 12c,
1005(b)) NO

OPPOSITION: Filed
on June 16, 2026 ☐ Late ☐ None

REPLY: Filed
on August 3, 2026 ☐
Late ☐ None

ANALYSIS:

I.
Background

On February 27, 2026, Plaintiff A.A.
Rocha Construction ("Plaintiff") filed the instant action against Defendants
Kaitlin Zemet and James R. Zemet ("Defendants"), alleging causes of action for
breach of oral and written contracts; work, labor, and services rendered/agreed
price; work, labor, and services rendered/reasonable value; unjust enrichment;
and foreclosure of mechanic's lien. (Compl.)

On March 10, 2026, Plaintiff filed a
Lis Pendens.

On April 24, 2026, Defendants filed
the instant Demurrer to Plaintiff's Complaint (the "Demurrer").

On June 16, 2026, Plaintiff filed an
Opposition.

On June 22, 2026, Defendants
rescheduled the hearing on the Demurrer from June 30, 2026, to August 10, 2026.

On June 24, 2026, Defendants filed a
Supplemental Declaration in support of the Demurrer.

On August 3, 2026, Defendants filed a
Reply and Supplemental Declaration.

II.

Procedural Issues

As an initial matter, the Court notes notice
of hearing on the Demurrer is defective. The Demurrer's notice of hearing
incorrectly states the Demurrer is set for hearing on June 30, 2026; however,
the instant Demurrer was rescheduled by the moving party to August 10, 2026.
Defendants have failed to file any proof of service demonstrating that the
continued hearing date for the Demurrer was properly served on Plaintiff.

Further, the Court notes that the
Opposition's caption includes a 6/30/26 hearing date rather than the rescheduled
8/10/26 hearing date.

Additionally, the Court notes that
while Defendants' 6/24/26 Supplemental Declaration contains a caption note
regarding a continued hearing date for the Demurrer, the caption states the
Demurrer is to be heard on August 1, 2026. This is the incorrect date for the
instant hearing and, as such, fails to provide proper notice of hearing for the
Demurrer. (See 6/24/26 Supp. Decl.)

Finally, the Court notes that while the Reply's caption includes the correct continued hearing date and time, the Reply was filed and served five court days prior to the instant hearing date. As such, the notice of hearing in the Reply's caption is insufficient to satisfy the statutory requirements for proper notice of hearing on a demurrer or motion. (See Code Civ. Proc., § 1005.) As such, the Reply caption fails to provide proper notice of hearing for the Demurrer. (See Reply.)

The Court may not rule on the Demurrer absent proper notice of hearing.

Thus, the Demurrer is CONTINUED to allow Defendants to file and serve proper notice of hearing of the Demurrer on Plaintiff.

IV.

Conclusion
& Order

For the foregoing reasons, Defendants Kaitlin Zemet and James R. Zemet's Demurrer to Plaintiff's Complaint is CONTINUED to September 9, 2026 at 9:00 a.m. in Department 512 of the Stanley Mosk Courthouse. Case Management Conference is CONTINUED to September 9, 2026 at 9:00 a.m.

At least 16 court days prior to the next scheduled hearing, Defendants are to file and serve proper notice of hearing of the Demurrer on Plaintiff.

Moving parties are ordered to give notice.